

VIRGIN ISLANDS
FINANCIAL INVESTIGATION AGENCY (RETURNS) ORDER, 2025
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VIRGIN ISLANDS
STATUTORY INSTRUMENT 2025 NO. 99
FINANCIAL INVESTIGATION AGENCY ACT
(REVISED EDITION 2020)

Financial Investigation Agency (Returns) Order, 2025

[Gazetted 27th November, 2025]

The Financial Investigation Agency, in exercise of the powers conferred by section 5R of the Financial Investigation Agency Act, Revised Edition 2020, makes the following Order.

Citation and Commencement

1. (1) This Order may be cited as the Financial Investigation Agency (Returns) Order, 2025.
- (2) This Order shall come into force on the 27th day of November, 2025.

Interpretation

2. (1) In this Order, unless the context otherwise requires -
“Act” means the Financial Investigation Agency Act, Revised Edition 2020;
“Agency” means the Financial Investigation Agency established under section 3 of the Act;
“applicable Schedule” or “relevant Schedule” refers to any of the Schedules outlined in this Order as may be applicable in relation to a DNFBP or NPO;
“DNFBP” shall be construed in accordance with section 2 of the Act;
“NPO” shall be construed in accordance with section 2 of the Act;
“return” shall be construed in accordance with section 5R of the Act.

Objectives

3. (1) The objectives of this Order are –
 - (a) to facilitate the timely preparation and submission of returns by DNFBPs and NPOs required by the Agency in order to enable the Agency to:
 - (i) identify any issues or deficiencies on a timely basis in order to safeguard the interests and the reputation of the Territory; and
 - (ii) to analyse and develop relevant statistical data for use by the Agency or for public dissemination;

- (b) to enable the Agency to appropriately respond to statistical inquiries by persons who are connected to or have interest in the work of the Agency, which the Agency considers to be legitimate and appropriate;
- (c) to enable the Agency to appropriately respond to requests for information consistent with its international obligations as a regulatory body or by virtue of its membership, observer status or other connection with any domestic or international institution or pursuant to any memorandum of understanding or other agreement or commitment which is consistent with its functions as a regulatory body;
- (d) to enable the Agency to meet any obligations or undertaking of the Agency by virtue of its membership or association with any institution or organisation or of implementing any domestic or internationally established standard or commitment;
- (e) to facilitate the Agency in the discharge of its duties, supervisory functions or exercise of its powers under the Act or for some other purpose consistent with the duties and functions of the Agency; and
- (f) to facilitate the electronic filing of returns in an efficient and timely manner.

(2) Any return received by the Agency pursuant to this Order shall be used only for the purposes outlined in section 5R of the Act and in pursuance of the objectives in subsection (1).

Filing returns

4. (1) Every DNFBP and NPO in respect of which the Agency exercises supervisory responsibility under section 5C of the Act, shall file with the Agency the relevant return in accordance with the requirements of Schedule 1 or Schedule 2, whichever is relevant to the DNFBP or NPO.

(2) It is the duty of every DNFBP and NPO to ensure that the information contained in any return filed pursuant to subsection (1) is accurate and complete.

(3) A return filed under subsection (1) shall not be considered to be properly filed or to be accepted by the Agency if:

- (a) it is not fully completed by providing all the relevant information required; or
- (b) it contains any information that is materially inaccurate or misleading.

(4) For the purposes of:

- (a) subsection (3)(a), a return shall not be considered to be incomplete simply on account of the absence of information which does not apply;
- (b) subsection (3)(b), information contained in a return is considered to be materially inaccurate or misleading if the Agency is satisfied that the information—

- (i) is wrong and cannot be relied upon for the purposes of section 5R of the Act or section 3 of this Order;
- (ii) has persistent errors that are not of a clerical nature; or
- (iii) is otherwise provided in a manner not consistent with the requirements of the applicable Schedule or any provision of this Order.

(5) For the purposes of subsection (4)(a), the onus is on the DNFBP or NPO that claims to be unable to provide the required information in a return on account of such information not being applicable, to prove the claim to the satisfaction of the Agency and in this regard the Agency may require such information as it considers appropriate.

Period for filing returns

5. (1) The period within which a return must be filed by a DNFBP or NPO shall be that provided in the relevant Schedule.

(2) Nothing contained in this Order affects the operation of any time frame for the provision of any report, statement, return or other obligation under the Act or any other enactment.

Extension for filing returns

6. (1) Subject to subsections (2) and (3), the Agency may, upon written application received from a DNFBP or NPO, grant an extension for the filing of a return by the DNFBP or NPO for a period of up to 30 days, and the DNFBP or NPO shall file the return within the specified time.

(2) The Agency shall not exercise the power conferred under subsection (1):

- (a) unless the written application for extension of time is received by the Agency at least 7 days before the date of expiry of the period stipulated in the applicable Schedule in respect of a return;
- (b) if a return required of a DNFBP or NPO for any period remains outstanding prior to the date of receipt of the written application for extension of time;
- (c) if, at the date of receipt of an application for extension of time, any penalty imposed on or applicable to a DNFBP or NPO remains unpaid;
- (d) if the reason for the written application for extension of time relates to the absence of a particular officer from duty, occurrence of a vacancy, shortage of staff or pressure of work or other similar reason; or
- (e) if, for any reason, the Agency considers that it is not appropriate or in the interest of the due performance of its functions to grant an extension of time.

(3) In making a decision on an application for extension of time under subsection (1), the Agency shall have regard to the following matters:

- (a) whether the delay in submitting a return is due to an act of nature beyond the control of the DNFBP or NPO, such as the occurrence

of an Act of God or other natural cause which has affected the efficient functioning of the DNFBP or NPO;

- (b) whether the operations of the DNFBP or NPO have been adversely affected by a fire or flood on its premises or other premises at which it maintains its records and for which the DNFBP or NPO is not responsible;
- (c) whether the records of the DNFBP or NPO have been stolen or severely interfered with in a robbery, for instance, as to make it difficult to comply with the required deadline for the filing of returns;
- (d) where audited financial statements are required but have not been received, whether there is a written confirmation from the DNFBP's or NPO's auditor that the audit is incomplete and providing reason for the delay and when the audit is likely to be completed;
- (e) the compliance culture of the DNFBP or NPO and whether the DNFBP or NPO is likely to comply with its obligations if granted an extension of time; and
- (f) whether there is any other reason provided by the DNFBP or NPO which the Agency considers compelling and acceptable.

(4) The onus is on the DNFBP or NPO that seeks to rely on any of the matters outlined in subsection (3) to provide sufficient information to the Agency in support of its written application for extension of time and the Agency may require such other information from the DNFBP or NPO as it considers appropriate for the purpose of making its decision.

Rectification of filed returns

7. (1) Where, after filing a return, a DNFBP or NPO becomes aware that the return contains information that is inaccurate or misleading, it shall, within 5 days of becoming so aware, notify the Agency of that fact in writing and provide the accurate information by filing with the Agency the relevant form specified in Schedule 3.

(2) Where, after receiving and accepting a return filed, the Agency discovers or becomes aware of information in the return which it is satisfied is materially inaccurate or misleading, it shall notify the DNFBP or NPO in writing of that fact and require the DNFBP or NPO concerned to provide the accurate information within a period of 7 days from the date of the notification in the relevant form specified in Schedule 4.

(3) Subject to section 4(3), no penalty applies in respect of an inaccurate or misleading information contained in a return which has been discovered or become known by the Agency after the return had been filed with and accepted by the Agency, if the DNFBP or NPO concerned complies with the requirements of subsection (1) or (2), as the case may be.

(4) The provisions of section 6 shall not apply to this section.

Electronic filing of returns

8. (1) Every DNFBP or NPO shall file a return or effect a rectification of such return, in an electronic form.

(2) For the purposes of sections 4, 6 and 7, a DNFBP or NPO may file a return or effect a rectification to such return in an electronic form by utilizing the form of the returns or rectification as outlined in the relevant form specified in the Schedules and provided by the Agency on its website or through such other medium as provided by the Agency.

Application of guidelines

9. Where the Agency issues guidelines in relation to this Order, the guidelines shall have effect in the application and implementation of this Order.

Penalties

10. (1) A DNFBP and NPO that fails to comply with section 5R of the Act or contravenes any provision of this Order, commits a breach and is liable to the applicable administrative penalty set out at Schedule 5.

(2) In addition to any penalty imposed on a DNFBP and NPO, the Agency may take such other enforcement action as it deems appropriate under the Act and any applicable regulatory legislation.

SCHEDULE 1

[Section 4(1)]

RETURN FOR DESIGNATED NON-FINANCIAL BUSINESS AND PROFESSIONS

This Return is to be completed and filed with the Financial Investigation Agency by Designated Non-Financial Business and Professions on or before 31 December in respect of the previous calendar year.

Annual Return Form

Pursuant to section 5R of the Financial Investigation Agency Act, Revised Edition 2020, the Financial Investigation Agency (“Agency”) may, by an Order published in the Gazette, require a DNFBP to provide a return containing information:

- a. on directors, senior officers and persons with significant interest and controlling interest;
- b. regarding preparation and submission of money laundering, terrorist financing and proliferation financing risk assessments of its business and affairs, including its policies, procedures, systems and internal controls; and
- c. on any other matter concerning the business or affairs of the DNFBP.

Kindly complete this form truthfully and submit the same to the Agency by the deadline given. The Agency reserves the right to verify the accuracy of all responses.

Who does this form apply to?

This form must be completed by all Designated Non-Financial Businesses and Professions (“DNFBPs”), namely:

1. **Legal practitioners, notaries public or accountants** undertaking relevant business, that is, the provision of services to clients, which involve transactions concerning any of the following activities –
 - (i) Buying and selling of real estate;
 - (ii) Managing of client money, securities or other assets;
 - (iii) Management of bank, savings or securities accounts;
 - (iv) Organisation of contributions for the creation, operation or management of companies; and
 - (v) Creation, operation or management of legal persons or arrangements, or buying and selling of business entities
2. **Real estate agents** undertaking relevant business, that is, the business of acting as a real estate agent when engaged in a transaction for a client concerning the buying and selling of real estate.

3. Persons engaged in the business of **dealing in precious metals or precious stones** when such transactions involve accepting a cash payment¹ of \$15,000 or more or the equivalent in any other currency.
4. Persons engaged in the **business of buying and selling boats, vehicles, jewellery or other high valued goods** such as furniture, machinery and art (relating to paintings and sculptures that are of intrinsic value), when such transactions involve accepting a cash payment of \$15,000 or more or the equivalent in any other currency.

As a DNFBP, your business falls within the Registration and Supervision of the Agency. This form is designed to gather information on the level of risk your business may be exposed to in relation to money laundering as well as terrorist and proliferation financing and information on directors, senior officers and persons with significant interest and controlling interest

How to complete and submit this form?

The form must be completed digitally. The completed application form must be returned to the Agency's Supervision and Enforcement Unit via email at complianceunit@fiabvi.vg.

If you are having difficulties completing the form, or are unable to complete it digitally, please contact the Supervision and Enforcement Unit in the first instance, who will be able to provide further guidance.

PART 1: RISK ASSESSMENT INFORMATION

SECTION I- ENTITY INFORMATION

1. Full Name of Entity: [Click or tap here to enter text.
2. Registered Address of Entity: [Click or tap here to enter text.
3. Mailing Address of Entity (if different): [Click or tap here to enter text.
4. Nature of Business: (Please select all that are applicable) a. Legal Practitioner ☐ b. Accountant ☐ c. Notary Public ☐ d. Real Estate Agent ☐ e. Car Dealer ☐ f. Jeweller ☐ g. Yacht Broker ☐ h. Dealer of Other High Valued Goods² ☐ Other (Please specify)- [Click or tap here to enter text.
5. Legal Status of Entity: Incorporated Company ☐ DBA ☐ Sole Trader ☐ Other (Please specify)- [Click or tap here to enter text.
6. If incorporated, please provide a copy of the Certificate of Incorporation, Certificate of Good Standing, Register of Directors and Shareholders and Memorandum or Articles of Association

¹ Cash payments involve transactions undertaken via cheques, money orders or any other type of monetary instrument.

² Other High Valued Goods means furniture, machinery and art (relating to paintings, sculptures that are of intrinsic value)

Kindly provide a copy of your entity's updated or most recent trade licence.
7. Type of premises occupied by your Entity (select all that are applicable): Commercial ☐ Residential ☐ Rental ☐ Owner ☐ Other- [Click or tap here to enter text.
8. Contact Information for Entity: a. Name of main contact - Click or tap here to enter text. b. Entity Telephone Number- [Click or tap here to enter text. c. E-mail Address- [Click or tap here to enter text. d. Website- [Click or tap here to enter text.
9. Does your Entity have any other branches /subsidiaries/ affiliates or associations / parent company or organisation/ either in or outside of the Virgin Islands? Yes ☐ No ☐ If yes, please provide the name of the branch/subsidiary/ affiliate or associations / parent company or organisation/ and the relevant address: [Click or tap here to enter text.
10. Please provide the number of employees within your Entity³: a. Full time: [Click or tap here to enter text. b. Part time: [Click or tap here to enter text. c. Contractual: [Click or tap here to enter text. d. Please indicate how many are sales representatives / front line staff: [Click or tap here to enter text.
11. Kindly select the type of relevant business activities conducted by your entity: Legal Practitioner, Accountant or Notary Public: a. Buying and selling of real estate ☐ b. Managing of client money, securities or other assets ☐ c. Management of bank, savings or securities accounts ☐ d. Organisation of contributions for the creation, operation or management of companies ☐

³ Kindly attach an Organisational Chart (if available).

- e. Creation, operation or management of legal persons or arrangements ☐
- f. Buying and selling of business entities ☐

Real Estate Agent:

- a. Buying of real estate ☐
- b. Selling of real estate ☐

High Value Goods Dealer (HVGD)

- a. Buying and selling of new and /or used motor vehicles ☐
- b. Buying and selling of new and / or used boats ☐
- c. Buying and selling of jewellery or other precious metals and stones ☐
- d. Buying and selling of machinery ☐
- e. Buying and selling of furniture ☐
- f. Buying and selling of art ☐

Other (Please specify)- [\[Click or tap here to enter text.\]](#)

SECTION II- TRANSACTION INFORMATION

1. Please confirm which of the following services the entity provides. For each activity include the total number of transactions for the year and the total approximate value of the transactions.

Legal Practitioner, Accountant or Notary Public:

	Activities / Services Provided	Number of Transactions conducted this year	Value of Transactions conducted this year
a	Buying and selling of real estate	Click or tap here to enter text.	Click or tap here to enter text.
b	Managing of client money, securities or other assets	Click or tap here to enter text.	Click or tap here to enter text.
c	Management of bank, savings or securities account	Click or tap here to enter text.	Click or tap here to enter text.
d	Organisation of contributions for the creation, operation or management of companies	Click or tap here to enter text.	Click or tap here to enter text.
e	Creation, operation or management of legal persons or arrangements	Click or tap here to enter text.	Click or tap here to enter text.

f	Buying and selling of business entities	Click or tap here to enter text.	Click or tap here to enter text.
g	Other (Please specify) Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.

Real Estate Agent:

	Activities / Services Provided	Number of Transactions conducted this year	Value of Transactions conducted this year
a	Residential Property Sale	Click or tap here to enter text.	Click or tap here to enter text.
b	Residential Property Purchase	Click or tap here to enter text.	Click or tap here to enter text.
c	Commercial Property Sale	Click or tap here to enter text.	Click or tap here to enter text.
d	Commercial Property Purchase	Click or tap here to enter text.	Click or tap here to enter text.
e	Land Sale	Click or tap here to enter text.	Click or tap here to enter text.
e	Land Purchase	Click or tap here to enter text.	Click or tap here to enter text.
f	Property Management	Click or tap here to enter text.	Click or tap here to enter text.
g	Other (Please specify) Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.

High Value Goods Dealer:

- a. Please indicate the approximate number of customer transactions conducted during the course of the year:

[Click or tap here to enter text.

- b. Please indicate the number of cash⁴ transactions in excess of \$15,000 during the course of the year:

[Click or tap here to enter text.

- c. Please indicate an approximate total value of transactions in excess of \$15,000 during the course of the year:

[Click or tap here to enter text.

⁴ Cash transactions involve transactions undertaken via cheques, money orders or any other type of monetary instrument.

2.	Does the Entity have clients based outside of the Virgin Islands? Yes ☐ No ☐ a. If yes, please provide the percentage for the number of clients: Based in the Virgin Islands [Click or tap here to enter text. Based outside of the Virgin Islands [Click or tap here to enter text. To be completed by Real Estate Agents Only: a. Is your Entity involved in the purchase of real estate which is located outside of the BVI Yes ☐ No ☐ If yes, please indicate the number/ percentage of transactions conducted for the year [Click or tap here to enter text. b. Please indicate whether your entity engages in any of the following activities during a transaction (please tick all that applies) a. Receiving or paying funds on behalf of a business or business ☐ b. Depositing or withdrawing funds on behalf of a person or business ☐ c. Transferring funds by any means on behalf of a person or business ☐
3.	Please indicate the Jurisdictions where your clients / customers are based? BVI ☐ US ☐ Europe ☐ Russia ☐ China ☐ Other (Please specify)- [Click or tap here to enter text. To be completed by High Value Good Dealers (HVGDs) Only: Please indicate the Jurisdictions where your suppliers are based? BVI ☐ US ☐ Europe ☐ Russia ☐ China ☐ Other (Please specify)- [Click or tap here to enter text.
4.	Has your entity conducted business with any high-risk jurisdiction during the course of this year? Yes ☐ No ☐

If yes, kindly indicate the jurisdiction (s) and the measures taken to mitigate the risks.

[Click or tap here to enter text.

5. What percentage of the following constitute your client / customer base:

	Type of Clients	Percentage
i	Natural / individual Clients	Click or tap here to enter text.
ii	Businesses/ Corporate Clients (legal persons)	Click or tap here to enter text.
iii	Trusts (legal arrangements)	Click or tap here to enter text.
iv	Third parties or Intermediaries	Click or tap here to enter text.
v	Politically Exposed Persons (PEPs)	Click or tap here to enter text.
vi	Foreign Clients	Click or tap here to enter text.
vii	Non- face-to-face Clients	Click or tap here to enter text.
viii	Other (Please specify) Click or tap here to enter text.	Click or tap here to enter text.

6. Does the Entity conduct Non-Face-to-Face transactions? Yes ☐ No ☐

a. If yes, please select the type and number of clients which engage in non-face-to-face transactions for the year:

	Type of Clients	Number of non-face-to-face transactions conducted this year
i	Natural / individual Clients	Click or tap here to enter text.
ii	Businesses/ Corporate Clients (legal persons)	Click or tap here to enter text.
iii	Trusts (legal arrangements)	Click or tap here to enter text.
iv	Third parties or Intermediaries	Click or tap here to enter text.
v	Politically Exposed Persons (PEPs)	Click or tap here to enter text.
vi	Foreign clients	Click or tap here to enter text.
vii	Other (Please specify) Click or tap here to enter text.	Click or tap here to enter text.

7. Does the entity conduct third party transactions⁵? Yes ☐ No ☐

a. If yes, how many third-party transactions were conducted for the year:
[Click or tap here to enter text.]

b. What is the procedure for third-party transactions?
[Click or tap here to enter text.]

8. Does the Entity accept third party payments? Yes ☐ No ☐

If yes, what is the procedure for accepting such payments?
[Click or tap here to enter text.]

9. Please indicate the entity's preferred method (s) to accept payments and state the number of transactions for the year:

	Method of Payments	Number of transactions conducted this year
a	Cash	Click or tap here to enter text.
b	Cheques	Click or tap here to enter text.
c	Wire Transfer	Click or tap here to enter text.
d	Digital/ Virtual Assets	Click or tap here to enter text.
e	Credit / Debit Card	Click or tap here to enter text.
f	Bank Financing	Click or tap here to enter text.
g	Other (Please specify) Click or tap here to enter text.	Click or tap here to enter text.

10. For cash transactions, please select which currency/currencies below which apply and the number of transactions attributed to each currency selected and the sum total:

	Currency	Number and sum total of transactions conducted this year
a	United States Dollars (USD)	Click or tap here to enter text.
b	British Pound Sterling (GBP)	Click or tap here to enter text.
c	European Currency (EURO)	Click or tap here to enter text.
d	Other (Please specify) Click or tap here to enter text.	Click or tap here to enter text.

⁵ A customer/ client conducting business or acting on behalf of an individual/ entity e.g. power of attorney

SECTION III- CLIENT IDENTIFICATION INFORMATION

1. Does the Entity conduct customer due diligence? Yes ☐ No ☐

If yes, kindly describe the Entity's customer due diligence process and the type of documents collected.

[Click or tap here to enter text.]

2. Do you conduct simplified due diligence? Yes ☐ No ☐

a. If yes, please indicate the nature or type of clients who are subject to simplified due diligence.

[Click or tap here to enter text.]

b. Please indicate what information or documentation is collected as part of your simplified due diligence procedures?

[Click or tap here to enter text.]

3. Has the Entity conducted Enhanced Due Diligence on any client or potential client for the year? Yes ☐ No ☐

a. If yes, what category of client contributes most to your Enhanced Due Diligence procedures? [Click or tap here to enter text.]

Please provide the number of each client or customer for the relevant category below

	Type of Clients	Number of clients / customers subject to EDD this year
a	Politically Exposed Persons (PEPs)	Click or tap here to enter text.
b	Relatives of PEPs	Click or tap here to enter text.
c	Close Associates of PEPs	Click or tap here to enter text.
d	Prominent members of International Organisations	Click or tap here to enter text.
e	Legal Persons (such as Companies, Corporations etc.)	Click or tap here to enter text.
f	Legal arrangements (such as Trusts)	Click or tap here to enter text.
g	Foreign Clients	Click or tap here to enter text.
h	Non-Face-to-Face Clients	Click or tap here to enter text.
i	Third Parties/ Intermediaries	Click or tap here to enter text.
j	Other (Please specify) Click or tap here to enter text.	Click or tap here to enter text.

b. Please indicate what information or documents are collected as part of your Enhanced Due Diligence procedures? [Click or tap here to enter text.
4. What are the entity's procedures for identifying and verifying the Ultimate Beneficial Owner in relation to a transaction? [Click or tap here to enter text.
5. Does the entity have any clients that have been identified as Politically Exposed Persons (PEPs); Yes ☐ No ☐ a. If yes, kindly describe the mechanism in place to identify and verify PEPs. [Click or tap here to enter text. b. Please indicate the number of PEPs for this year: [Click or tap here to enter text. Kindly attach the PEP Register for the period

SECTION IV- REPORTING OFFICER DETAILS

1. Has your Entity appointed a Money Laundering Reporting Officer (MLRO)? Yes ☐ No ☐ a. If yes, kindly indicate whether this function is: Internal ☐ Outsourced ☐ b. Please provide the following: Name of the MLRO- [Click or tap here to enter text. Email Address- [Click or tap here to enter text. Telephone- [Click or tap here to enter text.
2. Who does the MLRO report to? [Click or tap here to enter text.
3. Has the Entity verified that its MLRO is fit & proper to hold the post? Yes ☐ No ☐ If yes, how? [Click or tap here to enter text.
4. Kindly indicate whether the MLRO meets the following criteria? a. Does the MLRO have a clean criminal record Yes ☐ No ☐ Kindly provide a copy of a police record (valid for no more than 3 months).

b. Does the MLRO possess a Diploma or equivalent in AML/CFT Yes ☐ No ☐ Kindly provide copies of relevant educational certificates. c. Does the MLRO have any pending criminal or civil proceedings Yes ☐ No ☐ d. Has the MLRO ever been subject to any previous or pending investigations Yes ☐ No ☐ e. Does the MLRO have connections with any person that has a previous or pending criminal or civil proceeding Yes ☐ No ☐
5. Please select the duties of the MLRO within your Entity? (Tick all that applies) a. Implement the compliance programme ☐ b. Report SARs to the AIU ☐ c. Operational oversight of the Entity's compliance functions ☐ d. Receiving and considering internal suspicious activity reports ☐ e. Acting as the point of contact to the Agency ☐ f. Provide staff training on AML/CFT/CPF matters ☐ g. Monitoring of clients, business relationships and transactions ☐ h. Other (Please specify)- [Click or tap here to enter text.
6. Kindly provide a description of the AML/CFT/CPF training(s) the MLRO has received for the year? [Click or tap here to enter text.
7. How long has your MLRO held this position? [Click or tap here to enter text.
8. Is there an alternative MLRO or an individual who fulfills the role in the absence of the appointed MLRO? Yes ☐ No ☐ a. If yes, please provide the name and designation of that person. [Click or tap here to enter text.

SECTION V- COMPLIANCE POLICIES AND PROCEDURES

1. Has your entity developed and implemented an AML/CFT/CPF compliance programme (Manual)? Yes ☐ No ☐
2. If yes to question 1 above, a. Were the policies and procedures approved by senior management? Yes ☐ No ☐ b. Kindly provide a copy of the AML/CFT/CPF Compliance manual.
3. If no to question 1 above, please explain why. [Click or tap here to enter text.]
4. When was the AML/CFT/CPF Compliance Manual last updated? [Click or tap here to enter text.]
5. Was an institutional risk assessment conducted? Yes ☐ No ☐ a. If yes, kindly provide a copy of the findings of your institutional risk assessment.
6. When was the Institutional Risk Assessment last updated? [Click or tap here to enter text.]
7. How does the Entity monitor changes to its AML/CFT/CPF obligations? Newspaper ☐ MLRO ☐ Seminars/ Training Sessions ☐ FIA Website ☐ Government Gazette ☐ Other Websites ☐ Other (Please specify): Click or tap here to enter text.
8. Please indicate the type of system(s) used to conduct screening, sanction screenings, adverse media checks, open-source checks etc. Click or tap here to enter text.
9. Does your Entity cross-reference the names of the following with any list of designated individuals, entities or countries published by the FIU or any other entity such as the United Nations? Clients/customers ☐ Staff/employees ☐ Beneficial Owners ☐ Potential Clients/Customers ☐ Relevant third parties ☐
10. If yes to question 9 above, which lists are referenced and how often: a. OFAC ☐ - Frequency [Click or tap here to enter text.]

b. UNSC ☐ - Frequency [Click or tap here to enter text. c. UK Sanctions List ☐ - Frequency [Click or tap here to enter text. d. OFSI Consolidated List ☐ - Frequency [Click or tap here to enter text. e. LexisNexis ☐ - Frequency [Click or tap here to enter text. f. World check ☐ - Frequency [Click or tap here to enter text. g. OneSource ☐ - Frequency [Click or tap here to enter text. h. Other (Please specify type and frequency) [Click or tap here to enter text.
11. Kindly describe the Entity's procedures if a client is found on a list of designated individuals / entities? [Click or tap here to enter text.
12. How often are sanction screenings conducted? Indicate the number of clients/customers screened on average? [Click or tap here to enter text.
13. Has your entity made any reports to the Sanctions Unit and/or disclosures to the FIA in relation to any sanction, designated person or entity? Yes ☐ No ☐ If yes, kindly indicate the number of reports made. [Click or tap here to enter text.
14. Has your entity applied for any licenses from the Governor's Office for any clients or customers during the course of the year? Yes ☐ No ☐ If yes, how many? [Click or tap here to enter text.
15. How often are transaction records reviewed for suspicious patterns of activity? [Click or tap here to enter text.
16. Does your entity conduct ongoing customer due diligence and monitoring? Yes ☐ No ☐ If yes, kindly describe the procedure below: Click or tap here to enter text.

SECTION VI- REPORTING

1. Please indicate the number of unusual/ suspicious transactions that your employees reported to your MLRO during the course of this year: [Click or tap here to enter text. Kindly attach the Internal SAR Register for the period
2. Please indicate the number of STRs your Entity filed with the Agency during the course of this year: [Click or tap here to enter text. Kindly attach the External SAR Register for the period
3. Who do your employees submit internal suspicious activity reports to? [Click or tap here to enter text.
4. As part of your entity's CDD procedures, how many source of wealth and funds declarations were obtained during the course of this year: [Click or tap here to enter text.
5. Please describe your internal reporting procedures. [Click or tap here to enter text.

SECTION VII- RECORD KEEPING

1. Does your entity have a system in place to record client details and transactions? Yes ☐ No ☐ If yes, please describe what this system entails: [Click or tap here to enter text.
2. What documents or information are recorded and stored? [Click or tap here to enter text.
3. How are your documents stored? Electronically ☐ Physically ☐ Other- [Click or tap here to enter text.
4. If documents are stored physically, please provide information on where your storage system is located. [Click or tap here to enter text.
5. How long does your Entity maintain its records? [Click or tap here to enter text.

SECTION VIII- AML/CFT/CPF TRAINING

1. Has AML/CFT/CPF training been provided for management and staff? Yes ☐ No ☐
2. If yes to 1 above, please provide a brief description of the training(s) provided (inclusive of dates). [Click or tap here to enter text. Kindly attach the training register for this year.
3. How often is training provided? [Click or tap here to enter text.
4. Is training conducted internally by the MLRO or is it outsourced? [Click or tap here to enter text. a. If outsourced, kindly indicate the provider: [Click or tap here to enter text.
5. Who is responsible for organising AML/CFT training for management and staff? [Click or tap here to enter text.
6. Who ensures that management and staff are following the AML/CFT/CPF procedures? [Click or tap here to enter text.
7. Are any tests administered to confirm and ensure management and staff's understanding of the AML/CFT/CPF procedures and obligations? Yes ☐ No ☐ a. If yes, please state what testing procedures are used: [Click or tap here to enter text.
8. Kindly describe the staff turnover rate for this year: [Click or tap here to enter text.

SECTION IX- REVIEW OF COMPLIANCE POLICIES AND PROCEDURES

1. Has an independent audit / assessment of your Entity's AML/CFT/CPF policies and procedures been conducted? Yes ☐ No ☐ a. If yes, please state who conducted the audit / assessment? [Click or tap here to enter text. b. If yes, what was the date of the audit / assessment? [Click or tap here to enter text. c. If yes, what were the results of the audit / assessment? Click or tap here to enter text. Kindly provide a copy of the independent audit report.

2. Please provide information on the beneficial owners⁷ of the Entity below: (Note – if additional space is required for this information an additional page can be appended to the form.)

Full name	Address	Percentage of Interest Held	Nationality	Copy of Two (2) forms of Identification ⁸	Contact Information
Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.

3. Kindly indicate whether any of the directors, senior officers or persons holding significant or controlling interest:

a. Possesses a clean criminal record? Yes ☐ No ☐

Kindly provide a copy of a police record (valid for no more than 3 months).

b. Has been / is designated on the UK Sanctions List / UN Sanctions List? Yes ☐ No ☐

c. Is affiliated or has connection to any designated person(s) or entity? Yes ☐ No ☐

d. Has any pending criminal or civil proceedings? Yes ☐ No ☐

e. Has been subject to any previous or pending investigations Yes ☐ No ☐

f. Has connections to or affiliation with any high-risk jurisdictions? Yes ☐ No ☐

g. Has any business or company within any high-risk jurisdictions? Yes ☐ No ☐

h. Has any disciplinary, enforcement, disqualification or similar proceedings taken against them by any professional body, regulatory body or association in the Virgin Islands or elsewhere? Yes ☐ No ☐

i. Has dual citizenship? Yes ☐ No ☐

If yes, kindly state the jurisdictions. Click or tap here to enter text.

⁷ Kindly provide source of funds information/ documentation

⁸ This may include: NHI card, Driver's licence, Passport or any other document which possesses photo identification and an expiration date. Kindly note that if the identification documentation previously submitted to the Agency have not expired, you are not required to resubmit said documentation. However, kindly indicate.

Declaration by the DNFBP

This declaration must be made by a Director or Partner or Sole Proprietor of the DNFBP.

I hereby declare that the information provided in this Return is true and accurate. I understand that providing false or misleading information in the Return is an offence and can result in the Agency imposing a penalty against the entity.

Signature	[Click or tap here to enter text.
Print Name	[Click or tap here to enter text.
Position within the Entity	[Click or tap here to enter text.
Date	[Click or tap here to enter text.

SCHEDULE 2

[Section 4(1)]

RETURN FOR NON-PROFIT ORGANISATIONS

This Return is to be completed and filed with the Financial Investigation Agency by Non-Profit Organisations on or before 31 December in respect of the previous calendar year.

Annual Return Form

Pursuant to section 5R of the Financial Investigation Agency Act, Revised Edition 2020, the Financial Investigation Agency (“Agency”) may, by an Order published in the Gazette, require NPOs to provide a return containing information:

- a. on directors, senior officers and persons with significant interest and controlling interest;
- b. regarding preparation and submission of money laundering, terrorist financing and proliferation financing risk assessments of its business and affairs, including its policies, procedures, systems and internal controls; and
- c. on any other matter concerning the business or affairs of the NPO and its clients or donors.

Kindly complete this form truthfully and submit the same to the Agency by the deadline given. The Agency reserves the right to verify the accuracy of all responses.

Who does this form apply to?

This form must be completed by all **NPOs** in respect of which the Agency exercises supervisory responsibility under section 5C(2) of the Financial Investigation Agency Act, Revised Edition 2020, Act which states that the Agency shall:

- a. identify and assess NPOs that are engaging primarily in raising and disbursing funds;
- b. exercise supervisory responsibility of NPOs identified under (a) that are at risk of terrorist financing abuse; and
- c. where it considers it necessary, exercise supervisory responsibility of NPOs for money laundering and proliferation financing risks.

How to complete and submit this form?

The form must be completed digitally. The completed application form must be returned to the Agency’s Supervision and Enforcement Unit via email at complianceunit@fiabvi.vg.

This form is designed to obtain information on Non-Profit Organisations (NPOs) within the British Virgin Islands in order to determine the level of Terrorist Financing (TF) abuse and where necessary Money Laundering (ML), and

Proliferation Financing (PF) abuse. Therefore, kindly complete each section and attach any additional documents where necessary.

If you are having difficulties completing the form, or are unable to complete it digitally, please contact the Supervision and Enforcement Unit of the Agency in the first instance, who will be able to provide further guidance.

SECTION 1: RISK ASSESSMENT INFORMATION

PART A- ENTITY INFORMATION

1.	Name of the Non-Profit Organisation (NPO): Click or tap here to enter text.			
2.	Registered address of the NPO: Click or tap here to enter text.			
	NPO's mailing address (if different): Click or tap here to enter text.			
3.	Contact information for the NPO:			
	Telephone: Click or tap here to enter text. E-mail: Click or tap here to enter text.			
	Website: Click or tap here to enter text. Fax: Click or tap here to enter text.			
	Other (specify) Click or tap here to enter text.			
4.	What is the legal structure of the NPO?			
	a) Incorporated organisation ☐			
	b) Trust ☐			
	c) Registered NPO ☐			
	d) Other (please specify) Click or tap here to enter text.			
5.	Type of premises occupied by the NPO (select all that are applicable):			
	Commercial ☐ Residential ☐ Rental ☐ Owner ☐			
	Other (Specify) Click or tap here to enter text.			
6.	Does the NPO have a parent body or is affiliated with any other NPO or Trust (Local or International)? Yes ☐ No ☐			
	If yes, state the names, addresses purpose and activities of these NPOs and/or Trusts:			
No	Names	Address	Purpose	Activities
1	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.

2	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.
3	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.
4	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.
5	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.

PART B: NATURE OF OPERATIONS

7. What are the types of activities and percentage (%) of annual activities performed by the NPO (estimate where necessary)? Kindly comment only on the activities which apply to your NPO.

Type of Activity	% of Annual Activity
Social Services	Click or tap here to enter text.
Child/Youth Welfare	Click or tap here to enter text.
Education	Click or tap here to enter text.
Health Care	Click or tap here to enter text.
Sports and recreation	Click or tap here to enter text.
Environmental	Click or tap here to enter text.

Arts and Culture	Click or tap here to enter text.
Human Rights	Click or tap here to enter text.
Religious	Click or tap here to enter text.
Animal Welfare	Click or tap here to enter text.
Advocacy	Click or tap here to enter text.
Other (Please specify)	Click or tap here to enter text.

8. Please provide a brief description of:

- the nature of the activities/ services selected above in (7); and
- the operation of the NPO

Click or tap here to enter text.

PART C: MANAGEMENT

9. Briefly describe the organisational structure of your NPO. Click or tap here to enter text.
10. Is any of the information relating to organisational structure of the NPO and the board of directors above made available to the public? Yes ☐ No ☐
11. If yes to question 10, in what way it is published or made available to the public? Click or tap here to enter text.
12. Has any Director / Board member received training in: a. Anti-Money Laundering Yes ☐ No ☐ b. Counter-Financing of Terrorism Yes ☐ No ☐
13. How often are Board meetings held? Click or tap here to enter text.
14. Is the NPO managed or controlled by a foreign body or individual (s)? Yes ☐ No ☐

15. If yes, kindly describe the control structure and provide the jurisdiction (s) in which the foreign body or individual (s) is located.
Click or tap here to enter text.

PART D: FUNDING

16. Please indicate the top five (5) primary sources of income (e.g. Donors, Government, Trust, Fundraising Initiative etc.) based on percentage. Also, kindly specify whether these sources are local, regional or international.

No.	Source of Primary Income	% of Primary Income	Local, regional or international funding
1.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.
2.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.
3.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.
4.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.
5.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.

17. What are the fundraising methods used by the NPO?

- a. Cash collections Yes ☐ No ☐
- b. Social media/ online collections/ Go Fund me Yes ☐ No ☐
- c. Public donations Yes ☐ No ☐
- d. Government donations Yes ☐ No ☐
- e. Membership fees Yes ☐ No ☐
- f. Other (please specify) Click or tap here to enter text.

PART E: BANKING INFORMATION

18. Has the NPO opened an account with any of the following Financial Institutions?
- a. Bank ☐
- b. Credit Union ☐
- c. Other (please specify) Click or tap here to enter text.
19. What type of account(s) is established by the NPO:
- a. Organisation Accounts ☐
- b. Personal Accounts ☐

20. How many signatories are there to the account(s)? Click or tap here to enter text.

Kindly state the position held within the Organisation by each signatory.
Click or tap here to enter text.

21. Were there any difficulties experienced when setting up accounts?
Yes ☐ No ☐

If yes, please briefly state or describe the difficulties faced? What other alternative means are used to receive, move and use funds other than the financial system?
Click or tap here to enter text.

PART F: FINANCIAL INFORMATION

22. What was the NPO's annual inflow, outflow and asset size for the last financial year?

Year	Annual Inflow (Income)	Annual Outflow (Expenditure)	Asset Size
Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.
Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.
Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.

PART G: CROSS BORDER OPERATIONS AND ACTIVITIES

23. Does the NPO:

a. Raise or disburse funds internationally? Yes ☐ No ☐

b. Have international operations? Yes ☐ No ☐

24. What is the estimated value of funds received from and / or sent to foreign jurisdictions for the last financial year?

Received: \$ Click or tap here to enter text. Sent: \$ Click or tap here to enter text.

Kindly indicate the foreign jurisdictions from which funds were received and/or sent within the last financial year:
Click or tap here to enter text.

25. Does the NPO engage in cross border activities⁹? Yes ☐ No ☐ If yes, please describe the activities and state the jurisdictions involved. Click or tap here to enter text.
26. What percentage of your activities involve cross border fundraising disbursement and operations? Click or tap here to enter text.
27. Does the NPO make disbursements (including its own operations and activities) to humanitarian efforts? Yes ☐ No ☐
28. If yes, please describe the activities and state the jurisdictions which receive these disbursements. Click or tap here to enter text.

PART H: METHOD OF TRANSACTIONS

29. What percentages of the last financial year's receipts were derived from the following methods of payment:	
Payment Method	% of Annual Activity
Cash in hand	Click or tap here to enter text.
Credit Card	Click or tap here to enter text.
Debit Card	Click or tap here to enter text.
Wire Transfer	Click or tap here to enter text.
Money Remittance (i.e. Western Union etc.)	Click or tap here to enter text.
Standing Orders	Click or tap here to enter text.
Virtual Assets/ currency (e.g. bitcoin, ethereum)	Click or tap here to enter text.
In kind (e.g. food items, vehicles)	Click or tap here to enter text.
Gift or Donations	Click or tap here to enter text.
Other (specify)	Click or tap here to enter text.

⁹ Transfer of property, goods or services between individuals or organizations in different jurisdictions/ countries.

30. For cash transactions, please select which currency/currencies below apply and the annual percentage (%) of receipts attributed to each currency selected:

Currency	% of Annual Receipt
United States Dollar (USD)	Click or tap here to enter text.
Canadian Dollar (CAD)	Click or tap here to enter text.
Pound Sterling (GBP)	Click or tap here to enter text.
European Currency (EURO)	Click or tap here to enter text.
Eastern Caribbean Dollar (ECD)	Click or tap here to enter text.
Other (please specify)	Click or tap here to enter text.

31. What percentage of your disbursement / assistance is conducted via:

Payment Method	% of Annual Activity
Cash	Click or tap here to enter text.
Cheque	Click or tap here to enter text.
Goods	Click or tap here to enter text.
Services	Click or tap here to enter text.
Money Remittance (i.e. Western Union etc.)	Click or tap here to enter text.
Bank	Click or tap here to enter text.
Credit union	Click or tap here to enter text.
Virtual Assets (e.g. bitcoin, ethereum)	Click or tap here to enter text.
Other NPOs	Click or tap here to enter text.
Other (please specify)	Click or tap here to enter text.

32. Is funding/resources sent directly to your NPO's bank account or via another NPO or organisation or body for disbursement?
Click or tap here to enter text.

If your response is the latter, kindly confirm:

- the NPOs/Organisations collecting the funds/resources on your organisation's behalf;
- the Donors providing the funds/ resources; and
- a description of the value of funds / resources collected and transferred within the financial year.

Name of NPO/ Organisation	Name of Donor/s	Funds/resources collected and transferred
Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.
Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.
Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.
Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.

33. Do you collect, retain, transfer, allocate or deliver resources /funds to other NPOs or organisations? ☐Yes ☐No

If yes, kindly confirm:

- the NPOs/ Organisations in receipt of the funds / resources;
- the Donors providing the funds/ resources; and
- a description of the value of funds/ resources collected and transferred within the financial year.

Name of NPO/ Organisation	Name of Donor/s	Funds/resources collected and transferred
Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.
Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.
Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.
Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.

PART I: STAFFING

34. Indicate the number of paid staff and / or unpaid volunteers of the NPO.

Paid Staff: Click or tap here to enter text. Unpaid Volunteers: Click or tap here to enter text.

35. What is the average period of employment? (years or months): Click or tap here to enter text.

36. What is the process for recruitment? Click or tap here to enter text.
37. Is staff trained in:
a. Counter-Financing of Terrorism measures Yes ☐ No ☐ b. Anti-Money Laundering measures Yes ☐ No ☐

PART J: INTERNAL POLICIES AND PROCEDURES

38. Is the Board of Directors responsible for any of the following activities (please select all that are applicable)? ☐ Policy making & Implementation ☐ Project selection ☐ Donor Vetting ☐ Donation Collection ☐ Hiring Staff ☐ Recruiting Volunteers ☐ Management and allocation of Finances & Other assets ☐ Accountability & Quality assurance for projects & actions of the NPO ☐ Other (specify) Click or tap here to enter text.
39. If no to any of the activities in question 38 above, please state who is responsible for the activity. Click or tap here to enter text.
40. Does your NPO engage in projects? Yes ☐ No ☐ If yes, does the NPO: a. Have milestones, targets indicators and mechanisms for monitoring to ensure the completion of the project(s) Yes ☐ No ☐ b. Perform appropriate checks on donors, partners and beneficiaries Yes ☐ No ☐ c. Keep information in relation to the project(s) Yes ☐ No ☐
41. Is the management structure in which decisions are made: a. Decentralized ¹⁰ ☐ b. Centralized ¹¹ ☐

¹⁰ Decentralized management is the organizational structure where most decision-making responsibility is delegated to middle or lower level managers.

¹¹ Centralized management is the organizational structure where a top management makes most of the decisions.

42. Does your organisation cross-reference the names of staff, donors or volunteers with any designated individuals or entities on the UK Sanctions list or any other list? Yes ☐ No ☐ If yes, kindly state which other lists are checked. Click or tap here to enter text.
43. Is a vetting process done for donors and potential donors? Yes ☐ No ☐
44. If a vetting process is undertaken, does it include any of the following (select all that are applicable)? ☐ Name ☐ Address ☐ Source of funds ☐ Photographic Identification ☐ Contractual agreement ☐ Background check ☐ Other Click or tap here to enter text.
45. If a vetting process for donors is not undertaken, please state why? Click or tap here to enter text.
46. Are any of the donors or individuals with whom you conduct transactions Politically Exposed Persons ¹²? Yes ☐ No ☐ Do not Know ☐
47. If yes, how do you identify / verify Political Exposed Persons? Click or tap here to enter text.
48. Do you have Counter Financing of Terrorism (CFT) Policies or other policies which govern your organization? Yes ☐ No ☐
49. Do your donors (organisation not individuals) have Counter Financing of Terrorism (CFT) Policies and Procedures? Yes ☐ No ☐ Do not Know ☐

¹² Politically exposed persons are persons who have been entrusted with prominent functions by a foreign country, domestically or by an international organisation such as Heads of State or of government, senior politicians, senior government, judicial or military officials, senior executives of state-owned corporations, important political party officials, directors, deputy directors etc.

50. Briefly describe how donors and beneficiaries are verified by the NPO? Click or tap here to enter text.
51. Briefly describe the procedure by which funds / resources are retained, transferred, delivered and disbursed by the NPO. Click or tap here to enter text.
52. Are all transactions recorded and monitored? Yes ☐ No ☐ If yes, kindly describe what information is recorded, how (manually or electronically) and how long is it kept? Click or tap here to enter text.
53. Are transactions reviewed for suspicious patterns of activity? Yes ☐ No ☐ If yes, how often? Click or tap here to enter text.
54. What is the level of risk that the NPO is prepared to accept in pursuit of its objectives? a. No risk ☐ b. Low risk ☐ c. Medium risk ☐ d. High risk ☐
55. Is your NPO governed by: a. Ethical and professional standards and guidelines Yes ☐ No ☐ b. Internal codes of conduct Yes ☐ No ☐ c. Policies which facilitate accountability Yes ☐ No ☐ d. Policies which facilitate transparency Yes ☐ No ☐ e. Other (please specify) Yes ☐ No ☐ If yes, please submit a copy of the relevant policies highlighted above.
56. Are annual financial statements completed by your NPO? Yes ☐ No ☐ If yes, please submit a copy of the financial statement for the financial year.
57. Are your annual financial statements made available to the public and donors? Yes ☐ No ☐ If yes to the question above, please state where your annual financial statements can be viewed? Click or tap here to enter text.

58. Is there a grievance procedure in place for the public, donors or recipients to make queries regarding funding or disbursement or any other issues that may arise and to have them resolved? Yes ☐ No ☐

a. If yes, please state the procedure applied for the making and resolution of the grievance and state who is responsible for addressing such grievances?
Click or tap here to enter text.

b. If no, please state why? Click or tap here to enter text.

PART 2: INFORMATION ON DIRECTORS, SENIOR OFFICERS AND PERSONS WITH SIGNIFICANT OR CONTROLLING INTEREST

1. Please provide information on all directors and senior officers below:
(Note – if additional space is required for this information an additional page can be appended to the form.)

Full name	Address	Job Title/Role	Nationality	Date of Appointment	Copy of Two (2) forms of Identification ¹³	Contact Information
Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.

¹³ This may include: NHI card, Driver's licence, Passport or any other document which possesses photo identification and an expiration date.

2. Please provide information on the beneficial owners¹⁴ of the Entity below: (Note – if additional space is required for this information an additional page can be appended to the form.)

Full name	Address	Percentage of Interest Held	Nationality	Copy of Two (2) forms of Identification ¹⁵	Contact Information
Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.

3. Kindly indicate whether any of the directors, senior officers or persons holding significant or controlling interest:

- a. Possesses a clean criminal record? Yes ☐ No ☐
Kindly provide a copy of a police record (valid for no more than 3 months).
- b. Has been / is designated on the UK Sanctions List / UN Sanctions List? Yes ☐ No ☐
- c. Is affiliated or has connection to any designated person(s) or entity? Yes ☐ No ☐
- d. Has any pending criminal or civil proceedings? Yes ☐ No ☐
- e. Has been subject to any previous or pending investigations Yes ☐ No ☐
- f. Has connections to or affiliation with any high-risk jurisdictions? Yes ☐ No ☐
- g. Has any business or company within any high-risk jurisdictions? Yes ☐ No ☐
- h. Has any disciplinary, enforcement, disqualification or similar proceedings taken against them by any professional body, regulatory body or association in the Virgin Islands or elsewhere? Yes ☐ No ☐
- i. Has dual citizenship? Yes ☐ No ☐
If yes, kindly state the jurisdictions. Click or tap here to enter text.

¹⁴ Kindly provide source of funds information/ documentation

¹⁵ This may include: NHI card, Driver's licence, Passport or any other document which possesses photo identification and an expiration date.

I hereby declare that the information provided in this Return is true and accurate. I understand that providing false or misleading information in the Return is an offence and can result in the Agency imposing a penalty against the entity.

Name: Click or tap here to enter text.

Position: Click or tap here to enter text.

Date: Click or tap to enter a date.

Signature: _____

SCHEDULE 3

[Section 7(1)]

NOTIFICATION BY DNEBP OR NPO TO RECTIFY RETURN

We,..... (name of entity), of (address) hereby notify the Financial Investigation Agency that we have become aware that information contained in our return filed with the Agency contains inaccurate or misleading information which we now seek to rectify as follows:

Section	Relevant Return	Date Filed	Inaccurate/Misleading Information Provided	Correct Information	Reason for Inaccurate/Misleading Information

Dated this day of, 20....

Signed:

Name:

Title:

(For and on behalf of)

SCHEDULE 4

[Section 7(2)]

NOTIFICATION BY AGENCY TO RECTIFY RETURN

TO:

.....

(insert name and address of financial institution)

You are hereby notified that the Financial Investigation Agency has discovered or become aware of information contained in the return filed with the Agency on the day of, 20 which may be inaccurate or misleading.

Accordingly, you are directed to review the information and provide the Agency with the accurate information within 7 days from the date hereof using the Form below and providing the required information thereunder:

Section	Relevant Return	Date Filed	Inaccurate/Misleading Information Provided	Correct Information	Reason for Inaccurate/Misleading Information

This Notification is issued on behalf of the Financial Investigation Agency this day of, 20.....

By:

(Name)

Title:

Signature:

SCHEDULE 5

[Section 10(2)]

ADMINISTRATIVE PENALTIES

Section of Order Breached	Category of Contravention and Description	Penalty (Maximum)
5(1)	Failure to file a return as required by the Order (where an extension is not granted pursuant to section 6)	\$400 for the first thirty days, and \$100 for each additional month or part thereof, during which the return remains outstanding
6(1)	Failure to file a return within the period of extension (where an extension had been granted pursuant to section 6)	\$600 and \$100 for each additional month or part thereof during which the return remains outstanding
4(2)	Failure to ensure that information contained in a return is accurate and complete (this relates to information that is materially inaccurate or misleading)	\$300
7(1)	Failure to notify the Agency of knowledge of inaccurate or misleading information contained in a filed return and providing accurate information within the time prescribed	\$700
7(2)	Failure to provide accurate information as required by the Agency within the time prescribed to correct inaccurate information contained in a filed return	\$700

Made by the Financial Investigation Agency this 21st day of November, 2025.

(Sgd.) Errol George,
Director
Financial Investigation Agency